

attorney general then "deems [it] proper." Minn. Stat. § 8.01. Violations of the statute are prosecuted by county attorneys, not the attorney general. Minn. Stat. § 211B.16, subd. 3. In support of the motion for summary judgment the Deputy Minnesota Attorney General filed an affidavit testifying that (1) the attorney general's office has never initiated a prosecution alleging a violation of § 211B.06 and he was not aware of any county attorney ever requesting the office to do so, (2) the attorney general's office would decline any request to prosecute any of the activities described in the amended complaint as a violation of § 211B.06, and (3) the attorney general's office never has filed, and has no intention of ever filing, a complaint with the OAH alleging a violation of § 211B.06, especially based upon any of the activities in which the parties wish to engage, as stated in the first amended complaint. Accordingly, the attorney general argues that the record now establishes that there is no threat of her enforcing the challenged criminal statute against Appellants.

The Ex parte Young exception only applies against officials "who threaten and are about to commence proceedings, either of a civil or criminal nature, to enforce against parties affected an unconstitutional act, violating the Federal Constitution." Ex parte Young, 209 U.S. at 156. It is the attorney general's now-established (via affidavit), not speculative, unwillingness to exercise her ability to prosecute a § 211B.06 claim against Appellants that carries the day at this stage in the proceedings. Kitchen v. Herbert, 755 F.3d 1193, 1201 (10th Cir. 2014) ("An officer need not have a special connection to the allegedly unconstitutional statute; rather, he need only have a particular duty to enforce the statute in question and a demonstrated willingness to exercise that duty.") (quotation omitted). "The Ex parte Young doctrine does not apply when the defendant official has neither enforced nor threatened to enforce the statute challenged as unconstitutional." McNeilus Truck & Mfg., Inc. v. Ohio ex rel. Montgomery, 226 F.3d 429, 438 (6th Cir. 2000); Okpalobi v. Foster, 244 F.3d 405, 417 (5th Cir. 2001) ("[A]ny probe into the existence of a